

EUROPEAN MILITARY AIRWORTHINESS REQUIREMENT

EMAR 145

REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

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STATUS

The Status of the document can take 3 values:

Working Draft: Working copy to develop the proposed version or revision of the document.

Draft: Version to be proposed to the MAWA Forum by the Advisory Group.

Approved: Final version approved by the participating Member States for publication.

EDITION

The Edition Number will take the following format: **Edition X.YY:**

The **value of X** will change after a **major** revision of the document

The **value of Y** will change after a **minor** revision of the document

NOTES:

Amended paragraphs from EMAR 145 Edition 1.2 are indicated by the use of a 'sidebar' in the margin.

This EMAR relies on definitions laid down in EMAD 1.

The Forms referred to in this document can be found in the EMAR Forms document.

The term "contract" covers all types of written arrangements within military context (e.g. arrangement, tasking, agreement).

EMAR M introduces a number of constructs that are possible in the relationship between an Operating Organisation, CAMO and MO. Within EMAR 145, where the terminology 'Operating Organisation/CAMO' is used, it is essential that the appropriate organisation that can provide the required authority/service/information is engaged as per the context of the EMAR 145 requirement.

EMAR 145 REVISION STATUS**Commission Regulations reviewed**

The table below details the Implementing Rules (Commission Regulations) reviewed and considered by the MAWA CAWAG (Continuing Airworthiness Advisory Group) for EMAR 145 Ed. 2.0:

Commission Regulation reviewed	Date	Subject
Regulation (EU) No 1321/2014	26 Nov. 2014	Recast, repealing Regulation (EC) No 2042/2003
Regulation (EU) No 2015/1088	03 Jul. 2015	M1: First amending regulation, alleviations for maintenance procedures for general aviation aircraft
Regulation (EU) No 2015/1536	16 Sep. 2015	M2: Second amending regulation, alignment of rules for continuing airworthiness with Regulation (EC) No 216/2008, critical maintenance tasks and aircraft continuing airworthiness monitoring
Regulation (EU) No 2018/1142	14 Aug. 2018	M5: Fifth amending regulation, introduction of certain categories of aircraft maintenance licences, the modification of the acceptance procedure of components from external suppliers and the modification of the maintenance training organisations' privileges
Regulation (EU) No 2019/1383 and Corrigendum to Regulation (EU) 2019/1383 OJ L 230 of 06.09.2019) and Corrigendum to Regulation (EU) 2019/1383 OJ L 297/83 of 17.11.2022)	08 Jul. 2019	M6: Sixth amending regulation, safety management systems in continuing airworthiness management organisations and alleviations for general aviation aircraft concerning maintenance and continuing airworthiness management
Regulation (EU) No 2019/1384	24 Jul. 2019	M7: Seventh amending regulation, use of aircraft listed on an air operator certificate for non-commercial operations and specialised operations, the establishment of operational requirements for the conduct of maintenance check flights, the establishment of rules on non-commercial operations with reduced cabin crew on board and introducing editorial updates concerning air operations requirements
Regulation (EU) No 2020/270	25 Feb. 2020	M8: Eighth amending regulation, transitional measures for organisations involved in the continuing airworthiness for general aviation and continuing airworthiness management and correcting that Regulation
Regulation (EU) No 2020/1159	05 Aug. 2020	M9: Ninth amending regulation, introduction of new additional airworthiness requirements

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

Regulation (EU) No 2021/700	26 Mar. 2021	M11: Eleventh amending regulation, amending and correcting Regulation (EU) No 1321/2014 as regards the maintenance data and the installation of certain aircraft components during maintenance
Regulation (EU) No 2021/1963	08 Nov. 2021	M12: Twelfth amending regulation, amending and correcting Regulation (EU) No 1321/2014 as regards safety management systems in maintenance organisations and correcting that Regulation
Regulation (EU) No 2022/410	10 Mar. 2022	M13: Thirteenth amending regulation, amending and correcting Regulation (EU) No 1321/2014 as regards the continuing airworthiness management in a single air carrier business grouping

TABLE OF CONTENTS

SECTION A - TECHNICAL AND ORGANISATION REQUIREMENTS	9
145.A.10 Scope	9
145.A.15 Application for an organisation certificate	9
145.A.20 Terms of approval and scope of work	9
145.A.25 Facility requirements	9
145.A.30 Personnel requirements	10
145.A.35 Certifying staff and support staff	12
145.A.37 Airworthiness review staff	14
145.A.40 Equipment and tools	14
145.A.42 Components	14
145.A.45 Maintenance data	15
145.A.47 Production planning	17
145.A.48 Performance of maintenance	17
145.A.50 Certification of maintenance	17
145.A.55 Record-keeping	18
145.A.60 Occurrence reporting	19
145.A.65 Maintenance procedures	20
145.A.70 Maintenance Organisation Exposition (MOE)	20
145.A.75 Privileges of the organisation	21
145.A.85 Changes to the organisation	22
145.A.90 Continued validity	22
145.A.95 Findings and observations	23
145.A.120 Means of compliance	23
145.A.140 Access	23
145.A.155 Immediate reaction to a safety problem	23
145.A.200 Management system	23
145.A.202 Internal safety reporting scheme	24
145.A.205 Contracting and subcontracting	24
SECTION B - NATIONAL MILITARY AIRWORTHINESS AUTHORITY REQUIREMENTS	25
145.B.005 Scope	25
145.B.115 Oversight documentation	25
145.B.120 Means of compliance	25
145.B.125 Information to other NMAAs	25
145.B.135 Immediate reaction to a safety problem	25
145.B.200 Management system	25
145.B.205 Allocation of tasks to qualified entities	26

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

145.B.210 Changes in the management system	26
145.B.220 Record-keeping	27
145.B.300 Oversight principles	27
145.B.305 Oversight programme.....	28
145.B.310 Initial certification procedure	29
145.B.330 Changes – organisations.....	30
145.B.350 Findings and corrective actions; observations	30
145.B.355 Suspension, limitation and revocation.....	31
APPENDICES TO EMAR 145	32
Appendix I - Authorised Release Certificate - EMAR Form 1.....	32
Appendix II - Class and Rating System for the terms of Approval of EMAR 145 Maintenance Organisations	33
Appendix III – Maintenance Organisation Certificate - EMAR Form 3-145	37
Appendix IV - Conditions for the use of staff not qualified in accordance with EMAR 66 referred to in points 145.A.30(j)1 and 2	38

SECTION A - TECHNICAL AND ORGANISATION REQUIREMENTS

145.A.10 Scope

This Section establishes the requirements to be met by an organisation to qualify for the issue or continuation of an approval certificate for the maintenance of aircraft and components.

145.A.15 Application for an organisation certificate

- (a) An application for a certificate or an amendment to an existing certificate in accordance with EMAR 145 shall be made in a form and manner established by the National Military Airworthiness Authority (NMAA) taking into account the applicable requirements of EMAR M and EMAR 145.
- (b) Applicants for an initial certificate pursuant to EMAR 145 shall provide the NMAA with:
 - 1. the results of a pre-audit performed by the organisation against the applicable requirements provided for in EMAR M and EMAR 145;
 - 2. documentation demonstrating how they will comply with the requirements established in continuing airworthiness EMARs.

145.A.20 Terms of approval and scope of work

- (a) The organisation's scope of work shall be specified in the Maintenance Organisation Exposition (MOE) in accordance with [EMAR 145.A.70](#). (Appendix II to this EMAR contains a table of all classes and ratings.)
- (b) The organisation shall comply with the terms of approval attached to the organisation certificate issued by the NMAA, and with the scope of work specified in the MOE.

145.A.25 Facility requirements

The organisation shall ensure that:

- (a) Facilities are provided appropriate for all planned work, ensuring in particular, protection from the weather elements. Specialised workshops and bays are segregated as appropriate, to ensure that environmental and work area contamination is unlikely to occur.
 - 1. For base maintenance of aircraft, aircraft hangars are both available and large enough to accommodate aircraft on planned base maintenance;
 - 2. For component maintenance, component workshops are large enough to accommodate the components on planned maintenance.
- (b) Office accommodation is provided for the management of the planned work referred to in point (a) and certifying staff so that they can carry out their designated tasks in a manner that contributes to good aircraft maintenance standards.
- (c) The working environment including aircraft hangars, component workshops and office accommodation is appropriate for the task carried out and in particular special requirements observed. Unless otherwise dictated by the particular task environment, the working environment must be such that the effectiveness of personnel is not impaired:
 - 1. Temperatures must be maintained such that personnel can carry out required tasks without undue discomfort.
 - 2. Dust and any other airborne contamination are kept to a minimum and not be permitted to reach a level in the work task area where visible aircraft/component surface contamination is evident. Where dust/other airborne contamination

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

results in visible surface contamination, all susceptible systems are sealed until acceptable conditions are re-established.

3. Lighting is such as to ensure each inspection and maintenance task can be carried out in an effective manner.
 4. Noise shall not distract personnel from carrying out inspection tasks. Where it is impractical to control the noise source, such personnel are provided with the necessary personal equipment to stop excessive noise causing distraction during inspection tasks.
 5. Where a particular maintenance task requires the application of specific environmental conditions different to the foregoing, then such conditions are observed. Specific conditions are identified in the maintenance data.
 6. The working environment for line maintenance is such that the particular maintenance or inspection task can be carried out without undue distraction. Therefore, where the working environment deteriorates to an unacceptable level in respect of temperature, moisture, hail, ice, snow, wind, light, dust/other airborne contamination, the particular maintenance or inspection tasks must be suspended until satisfactory conditions are re-established.
- (d) Secure storage facilities are provided for components, equipment, tools and material. Storage conditions ensure segregation of serviceable components and material from unserviceable components, material, equipment and tools. The conditions of storage are in accordance with the manufacturer's instructions to prevent deterioration and damage of stored items. Access to storage facilities is restricted to authorised personnel.

145.A.30 Personnel requirements

- (a) The organisation shall appoint an accountable manager who has the authority for ensuring that all maintenance activities of the organisation can be carried out in accordance with EMARs. The Accountable manager shall:
1. Ensure that all necessary resources are available to accomplish maintenance in accordance with EMAR 145 and EMAR M to support the organisation certificate.
 2. Establish and promote the safety policy specified in [EMAR 145.A.200\(a\)\(2\)](#).
 3. Demonstrate a basic understanding of continuing airworthiness EMARs.
- (b) The accountable manager shall nominate a person or group of persons representing the management structure for the maintenance functions and with the responsibility to ensure that the organisation works in accordance with the MOE and approved procedures. It shall be made clear in the procedures who deputises for a particular person in the case of lengthy absence of that person.
- (c) The accountable manager shall nominate a person or group of persons with the responsibility to manage the compliance monitoring function as part of the management system.
- (ca) The accountable manager shall nominate a person or group of persons with the responsibility to manage the development, administration and maintenance of effective safety management processes as part of the management system.
- (cb) The person or group of persons nominated in accordance with points (b), (c) and (ca) shall have a responsibility to the accountable manager and direct access to him/her to keep him/her properly informed on compliance and safety matters.
- (cc) The person or persons nominated in accordance with points (b), (c) and (ca) shall be able to demonstrate relevant knowledge, background and satisfactory experience related to aircraft or component maintenance and demonstrate a working knowledge of continuing airworthiness EMARs.

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (d) The organisation shall have a maintenance man-hour plan to ensure it has sufficient and appropriately qualified staff to plan, perform, supervise, inspect and monitor the organisation's activities in accordance with the terms of approval. In addition the organisation shall have a procedure to reassess the work intended to be carried out when actual staff availability is reduced compared to the planned staffing level for a particular work shift or period.
- (e) The organisation shall establish and control the competency of the personnel involved in any maintenance, safety management and compliance monitoring in accordance with a procedure and to a standard agreed with the NMAA. In addition to the necessary expertise related to the job function, the competency of the personnel must include an understanding of the application of safety management principles, including human factors and human performance issues, which is appropriate to their function and responsibilities in the organisation.
- (f) The organisation shall ensure that personnel who carry out and/or control a non-destructive test of aircraft structures and/or components are appropriately qualified for the particular non-destructive test in accordance with the European or equivalent Standard recognised by the NMAA. Personnel who carry out any other specialised task shall be appropriately qualified in accordance with officially recognised Standards. By derogation from this point, personnel referred to in point (g) and point (h)(1), qualified in Category B1 in accordance with EMAR 66, may carry out and/or control colour contrast dye penetrant tests.
- (g) Any organisation maintaining aircraft, except where stated otherwise in point (j), shall in the case of aircraft line maintenance, have appropriate Military Aircraft Type Rated certifying staff, qualified as Category B1 and B2 as appropriate, in accordance with EMAR 66 and [EMAR 145.A.35](#).

In addition such organisations may also use appropriately task trained certifying staff holding the privileges described in EMAR 66.A.20(a)(1) and EMAR 66.A.20(a)3(ii) and qualified in accordance with EMAR 66 and [EMAR 145.A.35](#) to carry out minor scheduled line maintenance and simple defect rectification. The availability of such certifying staff shall not replace the need for Category B1 and B2 certifying staff as appropriate.

- (h) Any organisation maintaining aircraft, except where stated otherwise in point (j) shall:
 - 1. In the case of base maintenance of aircraft, have appropriate Military Aircraft Type Rated certifying staff qualified as Category C in accordance with EMAR 66 and [EMAR 145.A.35](#). In addition, the organisation shall have sufficient Military Aircraft Type Rated staff qualified as Category B1 and B2, as appropriate, in accordance with EMAR 66 and [EMAR 145.A.35](#) to support the Category C certifying staff.
 - (i) Category B1 and B2 support staff shall ensure that all relevant tasks or inspections have been carried out to the required standard before the Category C certifying staff issues the Certificate of Release to Service (CRS).
 - (ii) The organisation shall maintain a register of any such B1 and B2 support staff.
 - (iii) The Category C certifying staff shall ensure that compliance with point (i) has been met and that all work required by the Continuing Airworthiness Management Organisation (CAMO) has been accomplished during the particular base maintenance check or work package, and shall also assess the impact of any work not carried out with a view to either requiring its accomplishment or agreeing with the CAMO to defer such work to another specified check or time limit.

2. NOT APPLICABLE.

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (i) Component certifying staff shall be qualified in accordance with [EMAR 145.A.35](#).
- (j) By way of derogation from points (g) and (h), in relation to the obligation to comply with EMAR 66, the organisation may use certifying staff and support staff that are qualified in accordance with the following provisions:
 - 1. NOT APPLICABLE.
 - 2. NOT APPLICABLE.
 - 3. For a repetitive pre-flight Airworthiness Directive (AD) which specifically states that the flight crew may carry out such AD, the organisation may issue a limited certification authorisation to the pilot and/or the flight engineer on the basis of the flight crew licence or national equivalent qualification held. In that case, the organisation shall ensure that sufficient practical training has been carried out to ensure that such pilot and/or flight engineer can accomplish the AD to the required standard.
 - 4. If an aircraft is operated away from a supported location the organisation may issue a limited certification authorisation to the pilot and/or the flight engineer on the basis of the flight crew licence or national equivalent qualification held subject to being satisfied that the pilot and/or the flight engineer have carried out sufficient practical training ensuring that they can accomplish the specified task.
 - 5. In the following unforeseen cases, where an aircraft is grounded at a location other than the main base where no appropriate certifying staff are available, the organisation may issue a one-off certification authorisation:
 - (i) to one of its employees holding equivalent authorisations on other aircraft types of similar technology, construction and systems; or
 - (ii) to any person with not less than five years maintenance experience and holding a valid Military Aircraft Maintenance Licence (MAML), or an Aircraft Maintenance Licence accepted by the NMAA, rated for the aircraft type requiring certification provided there is no organisation appropriately approved under EMAR 145 at that location and the organisation obtains and holds on file evidence of the experience and the MAML of that person.

All such cases as specified in this point must be reported to the NMAA within seven days after issuing such certification authorisation. The organisation issuing the one-off authorisation shall ensure that any such maintenance that could affect flight safety is re-checked by an appropriately approved organisation.
- (k) NOT APPLICABLE.
- (l) To certify on-aircraft maintenance performed on armament, rescue and escape systems and other military-specific systems, any organisation maintaining aircraft shall have sufficient staff possessing the Category A, B1 or B2 MAML with the appropriate extensions.

145.A.35 Certifying staff and support staff

- (a) In addition to the requirements of [EMAR 145.A.30](#)(g) and (h), the organisation shall ensure that certifying staff and support staff have an adequate understanding of the relevant aircraft or components, or both, to be maintained and of the associated organisation procedures. In the case of certifying staff, this shall be accomplished before the issue or re-issue of the certification authorisation.
 - 1. 'Support staff' means those staff holding an EMAR 66 MAML in category B1 and/or B2 with the appropriate extensions and Military Aircraft Type Ratings,

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

working in a base maintenance environment while not necessarily holding certification privileges.

2. 'Relevant aircraft or components', means those aircraft or components specified in the particular certification authorisation.
 3. 'Certification authorisation' means the authorisation issued to certifying staff by the Organisation and which specifies the fact that those staff may sign CRSs within the limitations stated in such authorisation on behalf of the approved organisation.
- (b) Except for the cases listed in [EMAR 145.A.30\(j\)](#) and EMAR 66.A.20(a)3(ii), the organisation may only issue a certification authorisation to certifying staff in relation to the basic categories or subcategories and, except for the category A licence, any Military Aircraft Type Rating listed on the MAML, subject to the MAML remaining valid throughout the validity period of the authorisation and the certifying staff remaining in compliance with EMAR 66.
- (c) The organisation shall ensure that all certifying staff and support staff are involved in at least six months of actual relevant aircraft or component maintenance experience in any consecutive 2-year period.
- For the purpose of this point 'involved in actual relevant aircraft or component maintenance' means that the person has worked in an aircraft or component maintenance environment and has either exercised the privileges of the certification authorisation and/or has actually carried out maintenance on at least some of the aircraft type systems specified in the particular certification authorisation.
- (d) The organisation shall ensure that all certifying staff and support staff receive sufficient recurrent training in each 2-year period to ensure that they have up-to-date knowledge of relevant technologies, organisation procedures and safety management, including human factor issues.
- (e) The organisation shall establish a programme for recurrent training for certifying staff and support staff, including a procedure to ensure compliance with the relevant provisions of this point and a procedure to ensure compliance with EMAR 66.
- (f) With the exception of the unforeseen cases specified in [EMAR 145.A.30\(j\)\(5\)](#), the organisation shall assess all certifying staff for their competency, qualifications and capability to carry out their intended certifying duties in accordance with a procedure in the MOE prior to the issue or re-issue of a certification authorisation under this EMAR to such staff.
- (g) When the conditions of points (a), (b), (d), (f) and, where applicable, point (c) have been fulfilled by the certifying staff, the organisation shall issue a certification authorisation that clearly specifies the scope and limits of such authorisation. Continued validity of the certification authorisation is dependent upon continued compliance with points (a), (b), (d), and where applicable, point (c).
- (h) The certification authorisation must be in a style that makes its scope clear to the certifying staff and any authorised person who may require to examine the authorisation. Where codes are used to define scope, the organisation shall make a code translation readily available.
- 'Authorised person' means the officials of the NMAA.
- (i) The person or persons referred to in [EMAR 145.A.30\(c\)](#) that are responsible for the compliance monitoring function shall also remain responsible for issuing certification authorisations to certifying staff. That personnel may nominate other persons to effectively issue or revoke certification authorisations in accordance with a procedure in the MOE.

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (j) The organisation shall provide certifying staff with a copy of their certification authorisation in either a documented or electronic format.
- (k) Certifying staff shall produce their certification authorisation to any authorised person within 72 hours.
- (l) The minimum age for certifying staff and support staff is 21 years.
- (m) The holder of a category A MAML may only exercise certification privileges on a specific aircraft type following the satisfactory completion of the relevant category A aircraft task training carried out by an organisation approved in accordance with EMAR 145 or EMAR 147. This training shall include practical hands on training and theoretical training as appropriate for each task authorised. Satisfactory completion of training shall be demonstrated by an examination or by workplace assessment carried out by the organisation.
- (n) The holder of a category B2 MAML may only exercise the certification privileges described in EMAR 66.A.20(a)(3)(ii) following the satisfactory completion of:
 - (i) the relevant category A aircraft task training; and
 - (ii) 6 months of documented practical experience covering the scope of the authorisation that will be issued.

The task training shall include practical hands on training and theoretical training as appropriate for each task authorised. Satisfactory completion of training shall be demonstrated by an examination or by workplace assessment. Task training and examination/assessment shall be carried out by the MO issuing the certifying staff authorisation. The practical experience shall be also obtained within such MO unless approved otherwise by the NMAA.

145.A.37 Airworthiness review staff

NOT APPLICABLE.

145.A.40 Equipment and tools

- (a) The organisation shall have available and use the necessary equipment and tools to perform the approved scope of work.
 - (i) Where the manufacturer specifies a particular tool or equipment, the organisation shall use that tool or equipment, unless the use of alternative tooling or equipment is agreed by the NMAA via procedures specified in the MOE.
 - (ii) Equipment and tools must be permanently available, except in the case of any tool or equipment that is so infrequently used that its permanent availability is not necessary. Such cases shall be detailed in a MOE procedure.
 - (iii) An organisation approved for base maintenance shall have sufficient aircraft access equipment and inspection platforms/docking as required for the proper inspection of the aircraft.
- (b) The organisation shall ensure that all tools, equipment and particularly test equipment, as appropriate, are controlled and calibrated according to an officially recognised standard at a frequency to ensure serviceability and accuracy. Records of such calibrations and traceability to the standard used shall be kept by the organisation.

145.A.42 Components

- (a) Classification of components. All components shall be classified into the following categories:

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (i) Components which are in a satisfactory condition, released on an EMAR Form 1 or equivalent and marked in accordance with Subpart Q of EMAR 21, unless otherwise specified in EMAR 21.A.307, in EMAR M.A.502 or in EMAR 145.
 - (ii) Unserviceable components which shall be maintained in accordance with continuing airworthiness EMARs.
 - (iii) Components categorised as unsalvageable because they have reached their mandatory life limitation or contain a non-repairable defect.
 - (iv) Standard parts used on an aircraft, engine, propeller or other aircraft component when specified in the maintenance data and accompanied by evidence of conformity traceable to the applicable standard.
 - (v) Material, both raw and consumable, used in the course of maintenance when the organisation is satisfied that the material meets the required specification and has appropriate traceability. All material shall be accompanied by documentation clearly relating to the particular material and containing a conformity to specification statement as well as the manufacturing and supplier source.
- (b) Components, standard parts and materials for installation
- (i) The organisation shall establish procedures for the acceptance of components, standard parts and materials for installation to ensure that components, standard parts and materials are in satisfactory condition and meet the applicable requirements of point (a).
 - (ii) The organisation shall establish procedures to ensure that components, standard parts and materials shall only be installed on an aircraft or a component when they are in satisfactory condition, meet the applicable requirements of point (a) and the applicable maintenance data specifies the particular component, standard part or material.
 - (iii) The organisation may fabricate a restricted range of parts to be used in the course of undergoing work within its own facilities, provided procedures are identified in the MOE.
 - (iv) NOT APPLICABLE.
- (c) Segregation of components
- (i) Unserviceable and unsalvageable components shall be segregated from serviceable components, standards parts and materials.
 - (ii) Unsalvageable components shall not be permitted to re-enter the component supply system, unless mandatory life limitation have been extended or a repair solution has been approved in accordance with EMAR 21.

145.A.45 Maintenance data

- (a) The organisation shall have access to and use applicable current maintenance data in the performance of maintenance, including modifications and repairs. 'Applicable' means relevant to any aircraft, component or process specified in the organisation's terms of approval and in any associated capability list.
- In the case of maintenance data provided by the organisation requesting the maintenance, the organisation shall have access to such data when the work is in progress, with the exception of the need to comply with [EMAR 145.A.55\(a\)\(3\)](#).
- (b) Applicable maintenance data is any of the following:
1. Any applicable requirement, procedure, standard, operational directive or information issued by or provided by the NMAA;

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

2. Any applicable AD issued by the NMAA;
 3. Applicable Instructions for Continuing Airworthiness and other maintenance instructions, issued by (Military) Type Certificate (MTC) holders, (Military) Supplementary Type Certificate (MSTC) holders, any other organisation required to publish such data by EMAR 21 and in the case of aircraft or components from third countries the airworthiness data mandated by the Authority responsible for the oversight of the aircraft or component and accepted by the NMAA;
 4. For components approved for installation by the design approval holder, the applicable maintenance instructions published by the component manufacturers and acceptable to the design approval holder;
 5. Any applicable data issued in accordance with paragraph (d).
- (c) The organisation shall establish procedures to ensure that if any inaccurate, incomplete or ambiguous procedure, practice, information or maintenance instruction is found in the maintenance data used by maintenance personnel, it is recorded as part of the internal safety reporting scheme referred to in [EMAR 145.A.202](#) and notified to the author of the maintenance data.
- (d) The organisation may only modify maintenance instructions in accordance with a procedure specified in the MOE. With respect to changes to maintenance instructions, the organisation shall demonstrate that they result in equivalent or improved maintenance standards and shall inform the author of the maintenance instructions of such changes. For the purposes of this point “maintenance instructions” means instructions on how to carry out a particular maintenance task; they exclude the engineering design of repairs and modifications.
- (e) The organisation shall provide a common work card or worksheet system to be used throughout the relevant parts of the organisation. In addition, the organisation shall either transcribe accurately the maintenance data referred to in points (b) and (d) onto such work cards or worksheets, or make precise reference to the particular maintenance task or tasks contained in that maintenance data. Work cards and worksheets may be computer generated and held in an electronic database that is adequately protected against unauthorised alteration, and for which there is a back-up electronic database which shall be updated within 24 hours after an entry is made to the main electronic database. Complex or long maintenance tasks shall be transcribed onto the work cards or worksheets and subdivided into clear stages to ensure that there is a record of the accomplishment of the complete maintenance task.
- Where the organisation provides maintenance services to an Operating Organisation/CAMO which requires its own work card or worksheet system to be used, then such work card or worksheet system may be used. In that case, the organisation shall establish a procedure to ensure that those work cards or worksheets are correctly completed.
- (f) The organisation shall ensure that all applicable maintenance data is readily available for use when required by maintenance personnel.
- (g) The organisation shall establish a procedure to ensure that maintenance data it controls is kept up to date. In the case of maintenance data controlled and provided by the Operating Organisation/CAMO, the organisation shall be able to show that either it has written confirmation from the Operating Organisation/CAMO that all such maintenance data is up to date or it has work orders specifying the amendment status of the maintenance data to be used or it can show that it is on the Operating Organisation's/CAMO's maintenance data amendment list.

145.A.47 Production planning

- (a) The organisation shall have a system appropriate to the amount and complexity of work to plan the availability of all necessary personnel, tools, equipment, material, maintenance data and facilities in order to ensure the safe completion of the maintenance work.
- (b) As part of the management system, the planning of maintenance tasks, and the organising of shifts, shall take into account human performance limitations, including the threat of fatigue for maintenance personnel.
- (c) When it is required to hand over the continuation or completion of maintenance tasks for reasons of a shift or personnel changeover, relevant information shall be adequately communicated between outgoing and incoming personnel.
- (d) The organisation shall ensure that aviation safety hazards associated with external working teams carrying out maintenance at the organisation's facilities are considered by the organisation's management system.

145.A.48 Performance of maintenance

- (a) The organisation may only carry out maintenance on an aircraft or component for which it is approved when all the necessary facilities, equipment, tooling, material, maintenance data and personnel are available.
- (b) The organisation shall be responsible for the maintenance that is performed within the scope of its approval.
- (c) The organisation shall ensure that:
 - (1) after the completion of the maintenance, a general verification is carried out to ensure that the aircraft or component is clear of all tools, equipment and any extraneous parts or material, and that all access panels that were removed have been refitted;
 - (2) an error-capturing method is implemented after the performance of any critical maintenance task;
 - (3) the risk of errors during maintenance and the risk of errors being repeated in identical maintenance tasks are minimised;
 - (4) damage is assessed, and modifications and repairs are carried out using the data specified in EMAR M.A.304;
 - (5) the assessment of aircraft defects is carried out in accordance with EMAR M.A.403(b).

145.A.50 Certification of maintenance

- (a) A CRS for aircraft and a CRS for components shall be issued by appropriately authorised certifying staff on behalf of the organisation when that certifying staff has verified that all the maintenance that was ordered has been properly carried out in accordance with the procedures specified in [EMAR 145.A.70](#), taking into account the availability and use of the maintenance data specified in [EMAR 145.A.45](#), and that there are no known non-compliances which endanger flight safety.
- (b) A CRS for aircraft shall be issued before flight at the completion of any maintenance.
- (c) New defects or incomplete maintenance work orders identified during the maintenance shall be brought to the attention of the Operating Organisation/CAMO for the specific purpose of obtaining agreement to rectify such defects or completing the missing elements of the maintenance work order. In the case where the Operating

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

Organisation/CAMO declines to have such maintenance carried out under this point, point (e) is applicable.

- (d) A CRS for components shall be issued by appropriately authorised certifying staff on behalf of the organisation after the maintenance that was ordered has been carried out on a component whilst off the aircraft. The authorised release certificate EMAR Form 1 referred to in EMAR M constitutes the component CRS except if otherwise specified in EMAR M.A.502. When an organisation maintains a component for its own use, the EMAR Form 1 may not be necessary if the organisation's internal release procedures in its MOE so provides.
- (e) By derogation to point (a), when the organisation is unable to complete all maintenance ordered, it may issue a CRS within the approved aircraft limitations. The organisation shall enter such fact in the aircraft CRS before the issue of such certificate. Details of any deferred maintenance are to be entered in the aircraft technical log (EMAR M.A.306) by appropriately approved certifying staff.
- (f) By way of derogation from point (a) and [EMAR 145.A.42](#), when an aircraft is grounded at a location other than the Main Operation Base (MOB) due to the non-availability of a component with an appropriate release certificate, the organisation contracted for the maintenance of that aircraft may temporarily fit a component without the appropriate release certificate until the aircraft returns to the MOB, subject to the agreement of the CAMO and subject to that component having a suitable release certificate but otherwise in compliance with all applicable maintenance and operational requirements. Such components shall be removed by the time limit provided by the CAMO unless an appropriate release certificate has been obtained in the meantime under point (a) and [EMAR 145.A.42](#).

145.A.55 Record-keeping

(a) Maintenance records

- (1) The organisation shall record the details of the maintenance work that is carried out within the scope of its approval. As a minimum, the organisation shall retain all the records that are necessary to prove that all requirements have been met for the issue of the CRS, including, if any, subcontractor's release documents.
- (2) The organisation shall provide a copy of each CRS to the CAMO, together with copies of the detailed maintenance records that are associated with the work carried out and that are necessary to demonstrate compliance with EMAR M.A.305.
- (3) The organisation shall retain a copy of all detailed maintenance records (including CRS) and of any associated maintenance data for 3 years from the date the aircraft or component to which the work relates was issued with a CRS.
- (4) If an organisation terminates its operation, it shall transfer all the retained maintenance records that cover the last 3 years to the CAMO responsible for the respective aircraft or component or shall store them in the manner specified by the NMAA.

(b) Airworthiness review records

NOT APPLICABLE.

(c) Management system, contracting and subcontracting records

The organisation shall ensure that the following records are retained for a minimum period of 5 years:

- (i) records of management system key processes referred to in [EMAR 145.A.200](#);

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (ii) contracts, both for contracting and subcontracting, referred to in [EMAR 145.A.205](#).
- (d) Personnel records
 - (1) The organisation shall ensure that the following records are retained:
 - (i) records of the qualifications, training and experience of the personnel involved in maintenance, compliance monitoring and safety management;
 - (ii) NOT APPLICABLE.
 - (2) NOT APPLICABLE.
 - (3) The records of all the certifying staff and support staff shall include the following:
 - (i) the details of any military aircraft maintenance licence held under EMAR 66;
 - (ii) the scope of the certification authorisations that were issued to that staff, where relevant;
 - (iii) the particulars of the staff that held limited or one-off certification authorisations referred to in [EMAR 145.A.30\(j\)](#).
 - (4) Personnel records shall be kept for as long as a person works for the organisation and shall be retained for at least 3 years after the person has left the organisation, or after an authorisation issued to that person has been withdrawn.
 - (5) The organisation shall give to the staff referred to in points (2) and (3), upon their request, access to their personnel records as detailed in those points. In addition, upon their request, the organisation shall furnish each of them with a copy of their personnel records on leaving the organisation.
- (e) The organisation shall establish a record-keeping system that allows adequate storage and reliable traceability of all its activities.
- (f) The format of the records shall be specified in the organisation's procedures.
- (g) The records shall be stored in a manner that ensures that they are protected from damage, alteration and theft.

145.A.60 Occurrence reporting

- (a) As part of its management system, the organisation shall establish and maintain an occurrence-reporting system, including mandatory and voluntary reporting.
 - (1) the initial mandatory reports shall:
 - (i) appropriately safeguard the confidentiality of the identity of the reporter and of the persons mentioned in the report;
 - (ii) be made as soon as practicable, but in any case within 72 hours after the organisation has become aware of the occurrence unless exceptional circumstances prevent this;
 - (iii) be made in a form and manner established by the NMAA;
 - (iv) contain all pertinent information about the condition known to the organisation;
 - (2) where relevant, a follow-up report that provides details of the actions the organisation intends to take to prevent similar occurrences in the future shall be made as soon as those actions have been identified; those follow-up reports shall:

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (i) be sent to the entities referred to in points (b) and (c) to which the initial report was sent;
 - (ii) be made in a form and manner established by the NMAA.
- (b) The organisation shall report to its NMAA and to the design approval holder of the aircraft or component, in particular any accident or serious incident and any safety-related event or condition of an aircraft or component identified by the organisation which endangers or, if not corrected or addressed, could endanger an aircraft, its occupants or any other person, and in particular any accident or serious incident.
- (c) The organisation shall also report any such event or condition that affects an aircraft to the organisation that is responsible for the continuing airworthiness of that aircraft in accordance with EMAR M.A.201. For events or conditions that affect aircraft components, the organisation shall report to the organisation that requested the maintenance.
- (d) NOT APPLICABLE.

145.A.65 Maintenance procedures

- (a) The organisation shall establish procedures which ensure that human factors and good maintenance practices are taken into account during maintenance, including subcontracted activities, and which comply with the applicable requirements of EMAR 145 and EMAR M. Such procedures shall be agreed with the NMAA.
- (b) The maintenance procedures established under this point shall:
 - (1) ensure that a clear maintenance work order or contract has been agreed between the organisation and the organisation that requests the maintenance, to clearly establish the maintenance to be carried out so that the aircraft and components may be released to service in accordance with [EMAR 145.A.50](#);
 - (2) cover all the aspects of carrying out the maintenance, including the provision and control of specialised services, and lay down the standards according to which the organisation intends to work.

145.A.70 Maintenance Organisation Exposition (MOE)

- (a) The organisation shall establish and maintain a Maintenance Organisation Exposition (MOE) that includes, directly or by reference, all of the following:
 - (1) a statement signed by the accountable manager confirming that the organisation will at all times work in accordance with EMAR 145 and EMAR M and with the approved MOE. When the accountable manager is neither the chief executive officer nor senior military commander of the organisation then one of the latter shall countersign the statement;
 - (2) the organisation's safety policy and the related safety objectives referred to in [EMAR 145.A.200\(a\)\(2\)](#);
 - (3) the title(s) and name(s) of the persons nominated under [EMAR 145.A.30\(b\)](#), (c) and (ca);
 - (4) the duties and responsibilities of the persons nominated under [EMAR 145.A.30\(b\)](#), (c) and (ca), including the matters on which they may deal directly with the NMAA on behalf of the organisation;
 - (5) an organisation chart showing the accountability and associated lines of responsibility, established in accordance with [EMAR 145.A.200\(a\)\(1\)](#), between all the persons referred to in [EMAR 145.A.30\(a\)](#), (b), (c) and (ca);

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (6) a list of the certifying staff and, if applicable, support staff with their scope of authorisation;
 - (7) a general description of the manpower resources and of the system that is in place to plan the availability of staff, as required by [EMAR 145.A.30\(d\)](#);
 - (8) a general description of the facilities at each approved location;
 - (9) a specification of the scope of work of the organisation that is relevant to the terms of approval as required by [EMAR 145.A.20](#);
 - (10) the procedure that sets out the scope of changes not requiring prior approval and that describes how such changes will be managed and notified to the NMAA, as required by [EMAR 145.A.85\(c\)](#);
 - (11) the procedure for amending the MOE;
 - (12) the procedures specifying how the organisation ensures compliance with EMAR 145;
 - (13) a list of Operating Organisation(s) and CAMO(s) to which the organisation provides regular maintenance services, and the associated procedures;
 - (14) where applicable, a list of the subcontracted organisations referred to in [EMAR 145.A.75\(b\)](#);
 - (15) a list of the approved locations including, where applicable, line maintenance locations referred to in [EMAR 145.A.75\(d\)](#);
 - (16) a list of the contracted organisations;
 - (17) a list of the currently approved alternative means of compliance used by the organisation.
- (b) The initial issue of the MOE shall be approved by the NMAA. It shall be amended as necessary so that it remains an up-to-date description of the organisation.
- (c) Amendments to the MOE shall be managed as set out in the procedures referred to in points (a)(10) and (a)(11). Any amendments that are not included in the scope of the procedure referred to in point (a)(10), as well as any amendments related to the changes listed in [EMAR 145.A.85\(a\)](#), shall be approved by the NMAA.
- (d) Where a maintenance organisation has an extant EASA Part 145 approval, those parts of the organisation's EASA Part 145 exposition that are equally applicable to satisfy the EMAR 145 requirements shall generally be accepted by the NMAA as equivalent in respect of the EMAR 145 MOE. In this case it is permissible that only those requirements that are military specific need be addressed in the EMAR 145 MOE; those requirements covered by read-across of the sections of the EASA exposition shall be identified and reference shall be made to the EASA exposition clause.

Note: This principle shall also be applicable to any other foreign exposition acceptable to the NMAA.

145.A.75 Privileges of the organisation

In accordance with the MOE, the organisation shall be entitled to carry out the following tasks:

- (a) Maintain any aircraft or component for which it is approved at the locations identified in the certificate and in the MOE;
- (b) Arrange for the maintenance of any aircraft or component for which it is approved at another subcontracted organisation that works under the management system of the organisation. This is limited to the work permitted under the procedures established in accordance with [EMAR 145.A.65](#) and it shall not include a base maintenance check of

- an aircraft, or a complete workshop maintenance check or overhaul of an engine or an engine module;
- (c) Maintain any aircraft or component for which it is approved at any location subject to the need for such maintenance arising either from the unserviceability of the aircraft or from the necessity of supporting occasional line maintenance, subject to the conditions specified in the MOE;
 - (d) Maintain any aircraft or component for which it is approved at a location identified as a line maintenance location capable of supporting minor maintenance and only if the MOE both permits such activity and lists such locations;
 - (e) Issue CRSs in respect of completion of maintenance in accordance with [EMAR 145.A.50](#).
 - (f) NOT APPLICABLE.

145.A.85 Changes to the organisation

- (a) The following changes to the organisation shall require prior approval by the NMAA:
 - (1) changes to the certificate, including the terms of approval of the organisation;
 - (2) changes of the persons referred to in [EMAR 145.A.30](#)(a), (b), (c) and (ca);
 - (3) changes to the reporting lines between the personnel nominated in accordance with [EMAR 145.A.30](#)(b), (c) and (ca), and the accountable manager;
 - (4) the procedure as regards changes not requiring prior approval referred to in point (c);
 - (5) additional locations of the organisation other than those that are subject to [EMAR 145.A.75](#)(c).
- (b) For the changes referred to in point (a) and for all other changes requiring prior approval in accordance with EMAR 145, the organisation shall apply for and obtain an approval issued by the NMAA. The application shall be submitted before such changes take place in order to enable the NMAA to determine that there is continued compliance with EMAR 145 and to amend, if necessary, the organisation certificate and the related terms of approval that are attached to it.

The organisation shall provide the NMAA with any relevant documentation.

The change shall only be implemented upon the receipt of a formal approval from the NMAA in accordance with [EMAR 145.B.330](#).

The organisation shall operate under the conditions prescribed by the NMAA during such changes, as applicable.

- (c) All changes not requiring prior approval shall be managed and notified to the NMAA as set out in a procedure which is approved by the NMAA in accordance with [EMAR 145.B.310](#)(h).

145.A.90 Continued validity

- (a) The organisation's certificate shall remain valid, subject to compliance with all of the following conditions:
 - 1. The organisation remaining in compliance with EMAR 145 and EMAR M, taking into account the provisions of [EMAR 145.B.350](#) related to the handling of findings;
 - 2. The NMAA being granted access to the organisation as specified in [EMAR 145.A.140](#);

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

3. The certificate not being surrendered by the organisation or suspended or revoked by the NMAA under [EMAR 145.B.355](#).
- (b) Upon surrender or revocation, the certificate shall be returned to the NMAA without delay.

145.A.95 Findings and observations

- (a) After the receipt of a notification of findings in accordance with [EMAR 145.B.350](#), the organisation shall:
 - (1) identify the root cause(s) of, and contributing factor(s) to, the non-compliance;
 - (2) define a corrective action plan;
 - (3) demonstrate the implementation of corrective action to the satisfaction of the NMAA.
- (b) The actions referred to in point (a) shall be performed within the period agreed with that NMAA in accordance with [EMAR 145.B.350](#).
- (c) The observations received in accordance with [EMAR 145.B.350](#)(f) shall be given due consideration by the organisation. The organisation shall record the decisions taken in respect of those observations.

145.A.120 Means of compliance

- (a) An organisation may use any alternative means of compliance to establish compliance with continuing airworthiness EMARs.
- (b) If an organisation wishes to use an alternative means of compliance, it shall, prior to using it, provide the NMAA with a full description. The description shall include any revisions to manuals or procedures that may be relevant, as well as an explanation indicating how compliance with continuing airworthiness EMARs is achieved.

The organisation may use those alternative means of compliance subject to prior approval from the NMAA.

145.A.140 Access

For the purpose of determining compliance with the relevant requirements of EMAR 145 and EMAR M, the organisation shall ensure that access to any facility, aircraft, document, records, data, procedures or to any other material relevant to its activity subject to certification, whether it is subcontracted or not, is granted to any person authorised by one of the following authorities:

- (a) the NMAA;
- (b) the NMAA performing the oversight tasks in accordance with [EMAR 145.B.300](#)(d).

145.A.155 Immediate reaction to a safety problem

The organisation shall implement:

- (a) any safety measures mandated by the NMAA in accordance with [EMAR 145.B.135](#);
- (b) any relevant mandatory safety information issued by the NMAA.

145.A.200 Management system

- (a) The organisation shall establish, implement and maintain a management system that includes:
 - (1) clearly defined accountability and lines of responsibility throughout the organisation, including a direct safety accountability of the accountable manager;

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (2) a description of the overall philosophies and principles of the organisation with regard to safety ("the safety policy"), and the related safety objectives;
- (3) the identification of aviation safety hazards entailed by the activities of the organisation, their evaluation and the management of the associated risks, including taking actions to mitigate the risks and verify their effectiveness;
- (4) maintaining personnel trained and competent to perform their tasks;
- (5) documentation of all management system key processes, including a process for making personnel aware of their responsibilities and the procedure for amending that documentation;
- (6) a function to monitor the compliance of the organisation with the relevant requirements.

Compliance monitoring shall include a feedback system of findings to the accountable manager to ensure the effective implementation of corrective actions as necessary.

- (b) The management system shall correspond to the size of the organisation and the nature and complexity of its activities, taking into account the hazards and the associated risks inherent in those activities.
- (c) If the organisation holds one or more additional organisation certificates within the scope of EMARs, the management system may be integrated with that required under the additional certificate(s) held.

145.A.202 Internal safety reporting scheme

- (a) As part of its management system, the organisation shall establish an internal safety reporting scheme to enable the collection and evaluation of such occurrences that are to be reported under [EMAR 145.A.60](#).
- (b) The scheme shall also enable the collection and evaluation of those errors, near misses and hazards reported internally that do not fall under point (a).
- (c) Through that scheme, the organisation shall:
 - (1) identify the causes of, and contributing factors to, the errors, near misses and hazards reported, and address them as part of its safety risk management process in accordance with [EMAR 145.A.200\(a\)\(3\)](#);
 - (2) ensure an evaluation of all known, relevant information relating to errors, near misses, hazards and the inability to follow procedures and a method to circulate the information as necessary.
- (d) The organisation shall make arrangements to ensure the collection of safety issues related to subcontracted activities.

145.A.205 Contracting and subcontracting

- (a) The organisation shall ensure that when contracting or subcontracting any part of its maintenance activities:
 - (1) the maintenance conforms to the applicable requirements;
 - (2) any aviation safety hazard associated with such contracting or subcontracting is considered as part of the organisation's management system.
- (b) If the organisation subcontracts any part of its maintenance activities to another organisation, the subcontracted organisation shall work under the scope of approval of the subcontracting organisation.

SECTION B - NATIONAL MILITARY AIRWORTHINESS AUTHORITY REQUIREMENTS**145.B.005 Scope**

This section establishes the conditions for conducting the certification, oversight and enforcement tasks as well as the administrative and management system requirements to be followed by the NMAA that is responsible for the implementation and enforcement of Section A.

145.B.115 Oversight documentation

The NMAA shall provide all the legislative acts, standards, rules, technical publications, and related documents to the relevant personnel in order to allow them to perform their tasks and to discharge their responsibilities.

145.B.120 Means of compliance

- (a) The NMAA shall develop Acceptable Means of Compliance (AMC) that may be used to establish compliance with EMARs.
- (b) Alternative means of compliance may be used to establish compliance with EMARs.
- (c) NOT APPLICABLE.

145.B.125 Information to other NMAAs

- (a) NOT APPLICABLE.
- (b) If applicable (refer to EMAD R for the exchange of information between NMAAs), the NMAA shall exchange any safety-significant information stemming from the occurrence reports with other concerned NMAAs.

145.B.135 Immediate reaction to a safety problem

- (a) The NMAA shall implement a system to appropriately collect, analyse and disseminate safety information including recommendations or corrective actions to be taken.
- (b) NOT APPLICABLE.
- (c) Upon receiving the information referred to in point (a), the NMAA shall take adequate measures to address the safety problem.
- (d) Measures taken under point (c) shall immediately be notified to all organisations which need to comply with them under EMARs.

145.B.200 Management system

- (a) The NMAA shall establish and maintain a management system, including as a minimum:
 - (1) documented policies and procedures to describe its organisation, the means and methods for establishing compliance with EMARs. The procedures shall be kept up to date, and serve as the basic working documents within that NMAA for all its related tasks;
 - (2) a sufficient number of personnel to perform its tasks and discharge its responsibilities. A system shall be in place to plan the availability of personnel in order to ensure the proper completion of all tasks;
 - (3) personnel that are qualified to perform their allocated tasks and that have the necessary knowledge and experience and receive initial and recurrent training to ensure continuing competency;
 - (4) adequate facilities and office accommodation for personnel to perform their allocated tasks;

- (5) a function to monitor the compliance of the management system with the relevant requirements, and the adequacy of the procedures, including the establishment of an internal audit process and a safety risk management process. Compliance monitoring shall include a feedback system of audit findings to the senior management of the NMAA to ensure the implementation of corrective actions as necessary;
- (6) a person or group of persons having a responsibility to the senior management of the NMAA for the compliance monitoring function.
- (b) The NMAA shall, for each field of activity, including the management system, appoint one or more persons with the overall responsibility for the management of the relevant task(s).
- (c) If applicable (refer to EMAD R for the exchange of information between NMAAs), the NMAA shall establish procedures for the participation in a mutual exchange of all necessary information and assistance with other NMAAs concerned, including on:
 - (1) if applicable, all findings raised and any follow-up actions taken as a result of the oversight of persons and organisations that carry out activities in the territory of a pMS,
but certified by another NMAA;
 - (2) if applicable, information stemming from mandatory and voluntary occurrence reporting as required by [EMAR 145.A.60](#).
- (d) NOT APPLICABLE.

145.B.205 Allocation of tasks to qualified entities

- (a) The NMAA may allocate tasks related to the initial certification or to the continuing oversight of organisations subject to EMARs, to qualified entities. When allocating tasks, the NMAA shall ensure that it has:
 - (1) put a system in place to initially and continuously assess whether the qualified entity complies with NMAA's criteria. That system and the results of the assessments shall be documented;
 - (2) established a written agreement with the qualified entity, approved by both parties at the appropriate management level, which stipulates:
 - (i) the tasks to be performed;
 - (ii) the declarations, reports and records to be provided;
 - (iii) the technical conditions to be met when performing such tasks;
 - (iv) the related liability coverage;
 - (v) the protection given to the information acquired when carrying out such tasks.
- (b) The NMAA shall ensure that the internal audit process and safety risk management process established pursuant to [EMAR 145.B.200\(a\)\(5\)](#) cover all the certification and continuing oversight tasks performed by the qualified entity on its behalf.

145.B.210 Changes in the management system

- (a) The NMAA shall have a system in place to identify the changes that affect its capability to perform its tasks and discharge its responsibilities as defined in EMARs. That system shall enable the NMAA to take action necessary to ensure that its management system remains adequate and effective.

- (b) The NMAA shall update in a timely manner its management system to reflect any changes to EMARs, so as to ensure its effective implementation.
- (c) NOT APPLICABLE.

145.B.220 Record-keeping

- (a) The NMAA shall establish a record-keeping system that allows the adequate storage, accessibility and reliable traceability of:
 - (1) the management system's documented policies and procedures;
 - (2) the training, qualifications and authorisations of its personnel;
 - (3) the allocation of tasks, covering the elements required by [EMAR 145.B.205](#), as well as the details of tasks allocated;
 - (4) certification processes and continuing oversight of certified organisations, including:
 - (i) the application for an organisation certificate;
 - (ii) the NMAA's continuing oversight programme, including all the assessments, audits and inspection records;
 - (iii) the organisation certificate, including any changes to it;
 - (iv) a copy of the oversight programme, listing the dates when audits are due and when audits were carried out;
 - (v) copies of all formal correspondence;
 - (vi) recommendations for the issue or continuation of a certificate, details of findings and actions taken by the organisations to close those findings, including the date of closure, any exemption, enforcement actions and observations;
 - (vii) any assessment, audit and inspection report issued by another NMAA pursuant to [EMAR 145.B.300](#)(d);
 - (viii) copies of all the organisation MOEs or manuals, and of any amendments to them;
 - (ix) copies of any other documents approved by the NMAA;
 - (5) documents supporting the use of alternative means of compliance;
 - (6) NOT APPLICABLE;
 - (7) the use of safeguard and flexibility provisions in accordance with national legislation.
- (b) The NMAA shall maintain a list of all the organisation certificates it has issued.
- (c) All the records referred to in points (a) and (b) shall be kept for a minimum period of 5 years, subject to applicable data protection law.
- (d) If applicable (refer to EMAD R for the exchange of information between NMAAs), all the records referred to in points (a) and (b) shall be made available, upon request, to a NMAA of another pMS.

145.B.300 Oversight principles

- (a) The NMAA shall verify:
 - (1) compliance with the requirements that are applicable to organisations, prior to issuing an organisation certificate;

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (2) continued compliance with the applicable requirements of the organisations it has certified;
 - (3) the implementation of appropriate safety measures mandated by the NMAA in accordance with [EMAR 145.B.135](#)(c) and (d).
- (b) This verification shall:
 - (1) be supported by documentation specifically intended to provide personnel responsible for oversight with guidance to perform their functions;
 - (2) provide the organisations concerned with the results of oversight activities;
 - (3) be based on assessments, audits and inspections and, if needed, unannounced inspections;
 - (4) provide the NMAA with the evidence needed in case further action is required, including the measures provided for in [EMAR 145.B.350](#).
- (c) The NMAA shall establish the scope of the oversight set out in points (a) and (b) taking into account the results of past oversight activities and the safety priorities.
- (d) If the facilities of an organisation are located in more than one pMS, the NMAA may agree to have the oversight tasks performed by the NMAA(s) of the pMS(s) where the facilities are located. Any organisation that is subject to such an agreement between NMAs (refer to EMAD R) shall be informed of its existence and of its scope.
- (e) For any oversight activities that are performed at facilities located in another pMS, the NMAA may inform the NMAA of that pMS before performing any on-site audit or inspection of the facilities.
- (f) The NMAA shall collect and process any information deemed necessary for performing oversight activities.

145.B.305 Oversight programme

- (a) The NMAA shall establish and maintain an oversight programme covering the oversight activities required by [EMAR 145.B.300](#).
- (b) The oversight programme shall take into account the specific nature of the organisation, the complexity of its activities, the results of past certification or oversight activities, or both, and it shall be based on the assessment of the associated risks. It shall include, within each oversight planning cycle:
 - (1) assessments, audits and inspections, including, as appropriate:
 - (i) management system assessments and process audits;
 - (ii) product audits of a relevant sample of the maintenance carried out by the organisation;
 - (iii) NOT APPLICABLE;
 - (iv) unannounced inspections;
 - (2) meetings convened between the accountable manager and the NMAA to ensure that both parties remain informed of all significant issues.
- (c) The oversight planning cycle shall not exceed 24 months.
- (d) Notwithstanding point (c), the oversight planning cycle may be extended to 36 months if the NMAA has established that during the previous 24 months:
 - (1) the organisation has demonstrated that it can effectively identify aviation safety hazards and manage the associated risks;

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

- (2) the organisation has continuously demonstrated compliance with [EMAR 145.A.85](#) and it has full control over all changes;
- (3) no level 1 findings have been issued;
- (4) all corrective actions have been implemented within the time period that was accepted or extended by the NMAA as provided for in [EMAR 145.B.350](#).

Notwithstanding point (c), the oversight planning cycle may be further extended to a maximum of 48 months if, in addition to the conditions provided in points (d)(1) to (4), the organisation has established, and the NMAA has approved, an effective continuous system for reporting to the NMAA on the safety performance and regulatory compliance of the organisation itself.

- (e) The oversight planning cycle may be shortened if there is evidence that the safety performance of the organisation has decreased.
- (f) The oversight programme shall include records of the dates when assessments, audits, inspections and meetings are due, and when assessments, audits, inspections and meetings have been effectively carried out.
- (g) At the completion of each oversight planning cycle, the NMAA shall issue a recommendation report on the continuation of the approval, reflecting the results of the oversight.

145.B.310 Initial certification procedure

- (a) Upon receiving an application from an organisation for the initial issue of a certificate, the NMAA shall verify the organisation's compliance with the applicable requirements.
- (b) A meeting with the accountable manager of the organisation shall be convened at least once during the investigation for initial certification to ensure that the person understands his or her role and accountability.
- (c) The NMAA shall record all the findings and observations issued, closure actions as well as the recommendations for the issue of the certificate.
- (d) The NMAA shall confirm to the organisation in writing all the findings raised during the verification. For initial certification, all level 1 findings must be corrected and all level 2 findings must be addressed to the satisfaction of the NMAA before the certificate can be issued.
- (e) When satisfied that the organisation complies with the applicable requirements, the NMAA shall:
 - (1) issue the certificate as established in Appendix III "EMAR Form 3-145" in accordance with the class and rating system provided for in Appendix II;
 - (2) formally approve the MOE.
- (f) The certificate reference number shall be included on the EMAR Form 3-145 certificate in a manner specified by the NMAA.
- (g) The certificate shall be issued for an unlimited duration. The privileges and the scope of the activities that the organisation is approved to conduct, including any limitations as applicable, shall be specified in the terms of approval attached to the certificate.
- (h) To enable the organisation to implement changes without prior NMAA approval in accordance with [EMAR 145.A.85\(c\)](#), the NMAA shall approve the relevant MOE procedure that sets out the scope of such changes and describes how such changes will be managed and notified to the NMAA.

145.B.330 Changes – organisations

- (a) Upon receiving an application for a change that requires prior approval, the NMAA shall verify the organisation's compliance with the applicable requirements before issuing the approval.
- (b) The NMAA shall establish the conditions under which the organisation may operate during the change unless the NMAA determines that the organisation's certificate needs to be suspended.
- (c) When it is satisfied that the organisation complies with the applicable requirements, the NMAA shall approve the change.
- (d) Without prejudice to any additional enforcement measures, if the organisation implements changes requiring prior approval without having received the approval of the NMAA pursuant to point (c), the NMAA shall consider the need to suspend, limit or revoke the organisation's certificate.
- (e) For changes not requiring prior approval, the NMAA shall include the review of such changes in its continuing oversight in accordance with the principles set forth in [EMAR 145.B.300](#). If any non-compliance is found, the NMAA shall notify the organisation, request further changes, and act in accordance with [EMAR 145.B.350](#).

145.B.350 Findings and corrective actions; observations

- (a) The NMAA shall have a system in place to analyse findings for their safety significance.
- (b) A level 1 finding shall be issued by the NMAA when any significant non-compliance is detected with the applicable requirements of EMAR 145 and EMAR M, with the organisation's procedures and manuals, or with the organisation's certificate including the terms of approval, which lowers safety or seriously endangers flight safety.

Level 1 findings shall also include:

- (1) any failure to grant the NMAA access to the organisation's facilities referred to in [EMAR 145.A.140](#) during normal operating hours and after two written requests;
- (2) obtaining the organisation certificate or maintaining its validity by falsification of the submitted documentary evidence;
- (3) any evidence of malpractice or fraudulent use of the organisation certificate;
- (4) the lack of an accountable manager.
- (c) A level 2 finding shall be issued by the NMAA when any non-compliance is detected with the applicable requirements of EMAR 145 and EMAR M, with the organisation's procedures and manuals, or with the organisation's certificate including the terms of approval, which is not classified as a level 1 finding.
- (d) When a finding is detected during oversight or by any other means, the NMAA shall, without prejudice to any additional action required by EMARs, communicate in writing the finding to the organisation and request corrective action to address the non-compliance identified. If a level 1 finding directly relates to an aircraft, the NMAA shall inform the Operating Organisation of the aircraft.
 - (1) If there are any level 1 findings, the NMAA shall take immediate and appropriate action to prohibit or limit the activities of the organisation involved and, if appropriate, it shall take action to revoke the certificate or to limit or suspend it in whole or in part, depending on the extent of the level 1 finding, until successful corrective action has been taken by the organisation.
 - (2) If there are any level 2 findings, the NMAA shall:

- (i) grant the organisation a corrective action implementation period that is appropriate to the nature of the finding, and that in any case shall initially not be more than 3 months. The period shall commence from the date of the written communication of the finding to the organisation requesting corrective action to address the non-compliance identified. At the end of that period, and subject to the nature of the finding, the NMAA may extend the 3-month period provided that a corrective action plan has been agreed with the NMAA;
 - (ii) assess the corrective action plan and implementation plan proposed by the organisation, and if the assessment concludes that they are sufficient to address the non-compliance, accept them.
- (3) If the organisation fails to submit an acceptable corrective action plan or fails to perform the corrective action within the time period accepted or extended by the NMAA, the finding shall be raised to level 1 and action shall be taken as laid down in point (d)(1).
- (4) The NMAA shall record all the findings that it has raised or that have been communicated to it in accordance with point (e) and, where applicable, the enforcement measures it has applied, as well as all corrective actions and the dates of the action closures for all the findings.
- (e) When a NMAA performing the oversight tasks pursuant to [EMAR 145.B.300](#)(d) identifies any non-compliance with the applicable requirements EMAR 145 and EMAR M by an organisation certified by the NMAA of another pMS, it shall inform that NMAA and provide an indication of the level of the finding.
- (f) The NMAA may issue observations for any of the following cases not requiring level 1 or level 2 findings:
 - (1) for any item whose performance has been assessed to be ineffective;
 - (2) when it has been identified that an item has the potential to cause a non-compliance under points (b) or (c);
 - (3) when suggestions or improvements are of interest for the overall safety performance of the organisation.

The observations issued under this point shall be communicated in writing to the organisation and recorded by the NMAA.

145.B.355 Suspension, limitation and revocation

The NMAA shall:

- (a) suspend a certificate on reasonable grounds in the case of potential threat to aircraft safety;
- (b) suspend, revoke or limit a certificate if such action is required pursuant to [EMAR 145.B.350](#);
- (c) suspend or limit in whole or in part a certificate if unforeseeable circumstances outside the control of the NMAA prevent its inspectors from discharging their oversight responsibilities over the oversight planning cycle.

APPENDICES TO EMAR 145

Appendix I - Authorised Release Certificate - EMAR Form 1

EMAR Form 1 is contained in the EMAR Forms document.

Appendix II - Class and Rating System for the terms of Approval of EMAR 145 Maintenance Organisations

- (a) Except as stated otherwise for the smallest organisations referred to in point (m), the table referred to in point (l) provides the possible classes and ratings to be used to establish the terms of approval of the certificate of the organisation approved in accordance with EMAR 145. An organisation must be granted terms of approval that range from a single class and rating with limitations to all classes and ratings with limitations.
- (b) In addition to the table in point (l), the organisation is required to indicate its scope of work in its MOE.
- (c) Within the approval class(es) and rating(s) established by the NMAA, the scope of work specified in the MOE defines the exact limits of its approval. It is therefore essential that the approval class(es) and rating(s) and the organisation's scope of work match.
- (d) A Category A class rating means that the organisation may carry out maintenance on aircraft and components (including engines and/or Auxiliary Power Units (APUs)), in accordance with the aircraft maintenance data or, if agreed by the NMAA, in accordance with the component maintenance data, only whilst such components are fitted to the aircraft. Nevertheless, such an A-rated organisation may temporarily remove a component for maintenance, in order to improve access to that component, except when its removal generates the need for additional maintenance that the organisation is not approved to perform. Such removal of component for maintenance by A-rated organisation shall be subject to an appropriate control procedure in the MOE. The limitation column must specify the scope of such maintenance, thereby indicating the extent of the approval.
- (e) Category A class ratings are subdivided into "Base" or "Line" maintenance categories. Such an organisation may be approved for either "Base" or "Line" maintenance, or both. It should be noted that a "Line" facility located at a main base facility requires a "Line" maintenance approval.
- (f) A Category B class rating means that the organisation may carry out maintenance on uninstalled engines and/or APUs and engines and/or APU components, in accordance with the engine and/or APU maintenance data or, if agreed by the NMAA, in accordance with the component maintenance data, only whilst such components are fitted to the engine and/or the APU. Nevertheless, such a B-rated approved organisation may temporarily remove a component for maintenance in order to improve access to that component, except when its removal generates the need for additional maintenance that the organisation is not approved to perform.

The limitation column must specify the scope of such maintenance, thereby indicating the extent of the approval.

An organisation that is approved with a Category B class rating may also carry out maintenance on an installed engine during aircraft base and line maintenance, provided that an appropriate control procedure in the MOE has been approved by the NMAA. The scope of work in the MOE shall reflect those activities if they are permitted by the NMAA.

- (g) A Category C class rating means that the organisation may carry out maintenance on uninstalled components (excluding complete engines and APUs) that are intended to be fitted on the aircraft or the engine/APU.

The limitation column must specify the scope of such maintenance thereby indicating the extent of the approval.

An organisation that is approved with a Category C class rating may also carry out maintenance on an installed component (other than a complete engine/APU) during

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

aircraft base and line maintenance, or at an engine/APU maintenance facility provided that an appropriate control procedure in the MOE has been approved by the NMAA. The scope of work in the MOE shall reflect those activities if they are permitted by the NMAA.

- (h) A Category D class rating is a self-contained class rating that is not necessarily related to a specific aircraft, engine or other component. The D1 — Non-Destructive Testing (NDT) rating is only necessary for an organisation that carries out NDT as a particular task for another organisation. An organisation that is approved with a class rating in the A, B or C Category may carry out NDT on products and/or components that it maintains without the need for a D1 class rating provided that the MOE contains appropriate NDT procedures.
- (i) The 'limitation' column is intended to give NMAAs the flexibility to customise an approval for any organisation. Ratings may only be mentioned on the approval if they are appropriately limited. The table in point (l) specifies the types of limitations that are possible. It is acceptable to stress in the limitation column the maintenance task rather than the type or manufacturer of the aircraft or engine, if that is more appropriate to the organisation (an example could be avionics systems installations and the related maintenance). If that is mentioned in the limitation column, it indicates that the organisation is approved to carry out maintenance up to and including that particular type/task.
- (j) When reference is made to the type/model and series in the limitation column of class A and B, it shall be understood as follows:
 - "series" means a specific type series such as Tiger series, A320 series or Rafale series, etc.,
 - "type" means a specific type or model that is part of a type certificate, such as Tiger HAP, Rafale F4, A109/LUHS. Any number of series or types may be quoted.
- (k) By way of derogation from [EMAR 145.A.85\(a\)\(1\)](#), when a component capability list is used that could be subject to frequent amendments, then the organisation may propose to include such amendments in the procedure referred to in [EMAR 145.A.85\(c\)](#) for changes not requiring prior approval.

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

(I) Table

CLASS	RATING	LIMITATION	BASE	LINE
AIRCRAFT	A1 Aeroplanes/ above 5 700 kg maximum take-off mass (MTOM)	[Shall state the aeroplane manufacturer or series or type/model and/or the maintenance task(s)] <i>Examples: Rafale F4, A320 series,...</i>	[YES/ NO]*	[YES/ NO]*
	A2 Aeroplanes of 5 700 kg MTOM and below	[Shall state the aeroplane manufacturer or series or type/model and/or the maintenance tasks] <i>Example: DHC-6 Twin Otter Series, PC7,...</i>	[YES/ NO]*	[YES/ NO]*
	A3 Helicopters	[Shall state the helicopter manufacturer or series or type/model and/or the maintenance task(s)] <i>Example: Tiger series, A109,...</i>	[YES/ NO]*	[YES/ NO]*
	A4 Aircraft other than A1, A2 and A3	[Shall state the aircraft category the manufacturer or series or type/model and/or the maintenance task(s)]	[YES/ NO]*	[YES/ NO]*
ENGINES/APU	B1 Turbine	[Shall state engine series or type/model and/or the maintenance task(s)] <i>Example: PT6A Series</i>		
	B2 Piston	[Shall state engine manufacturer or series or type/model and/or the maintenance task(s)]		
	B3 APU	[Shall state engine manufacturer or series or type/model and/or the maintenance task(s)]		
COMPONENTS other than complete engines or APU's	RATING	S1000D CHAPTER REFERENCE ¹	LIMITATION [Shall state the aircraft type/model or aircraft manufacturer or the particular component and/or cross-refer to a capability list in the exposition and/or the maintenance task(s)] e.g.: PT6A Fuel Control	
	C1 Air Cond & Press	21		
	C2 Auto Flight	22		
	C3 Comms and Nav	23-34-43		
	C4 Doors — Hatches	52		
	C5 Electrical Power & Lights	24-33-91		
	C6 Equipment	25-38-45-50		
	C7 Engine — APU	49-71-72-73-74-75-76-77-78-79-80-81-82- 83-86		
	C8 Flight Controls	27-55-57.40-57.50-57.60-57.70		
	C9 Fuel	28-48		
	C10 Helicopter — Rotors	62-64-66-67		
	C11 Helicopter — Trans	63-65		
	C12 Hydraulic Power	29		
	C13 Indicating - recording	31-46		

¹ S1000D Chapter Reference: in conformity with "S1000D Standard Numbering System (SNS)"

EMAR 145 - REQUIREMENTS FOR MAINTENANCE ORGANISATIONS

	system		
	C14 Landing Gear	32-90	
	C15 Oxygen	35-47	
	C16 Propellers	61	
	C17 Pneumatic & Vacuum	36-37	
	C18 Protection ice/ rain/fire	26-30	
	C19 Windows	56	
	C 20 Structural	53-54-57.10-57.20-57.30	
	C 21 Water Ballast	41	
	C 22 Propulsion Augmentation	84	
	C 51 Attack systems	39-40-42	
	C 52 Radar/ Surveillance	92-93	
	C 53 Weapons systems	94	
	C 54 Crew escape & Safety	95	
	C 55 Drones/Telemetry	96-00, 96-30, 96-40	
	C 56 Reconnaissance	97-98	
	C 57 Electronic warfare	99	
SPECIALISED SERVICES	D1 Non-Destructive Testing	[Shall state particular NDT method(s)]	
	D5 Munitions and Pyrotechnic Systems Specific	[Shall state munitions type and maintained pyrotechnic systems]	

Appendix III – Maintenance Organisation Certificate - EMAR Form 3-145

EMAR Form 3-145 is contained in the EMAR Forms document.

Appendix IV - Conditions for the use of staff not qualified in accordance with EMAR 66 referred to in points 145.A.30(j)1 and 2

NOT APPLICABLE.